

Smt. Munni Devi vs The State on 15 April, 2017

IN THE COURT OF ADMINISTRATIVE CIVIL JUDGE-
CUM- ADDITIONAL RENT CONTROLLER (CENTRAL) :
DELHI

Presided over by : Sh. Hem Raj

Petition No. : SC/32825/16

In the matter of:-

Smt. Munni Devi,
W/o. Late Sh. Chhedi Lal,
R/o. 1/3684-B, Ram Nagar,
Dak Khanewali Gali No. 2,
Delhi.

....Petitioner.

Versus

- 1 The State
 (NCT of Delhi)
- 2 Sh. Gangavasi,
 S/o. Sh. Prabhu,
 R/o. 1/3684-B, Ram Nagar,
 Dak Khanewali Gali No. 2,
 Delhi.
- 3 Smt. Sumrati,
 W/o. Sh. Gangavasi,
 R/o. 1/3684-B, Ram Nagar,
 Dak Khanewali Gali No. 2,
 Delhi.

.....Respondents.

Date of Institution : 22.03.2005

Petition no. 32825/16

Date of order when reserved : 14.03.2017

Date of order when announced : 15.04.2017

J U D G M E N T :

1 The present succession petition has been filed by the
petitioner namely Smt. Munni Devi, for grant of Succession
Certificate in her favour in respect of debts and securities left by Sh.
Chhedi Lal, who expired on 06.01.2005 at Delhi, claiming that the deceased was her husband.

2 Notice of this petition was given to the general public by way of publication in the newspaper 'The Statesman' dated 25.04.2008, but none has appeared from general public to oppose or contest the present petition.

3 During the pendency of the petition, respondent no. 2 Sh. Gangavasi had also expired leaving behind his wife Smt. Sumrati, who is also respondent no. 3 in the present petition.

4 Reply filed on behalf of the respondent i.e. CPWD, H Division wherein it is averred that after the death of the deceased, this fact came in its knowledge that there were two wives of the deceased Sh. Chhadi Lal and both are claiming dues of the deceased. Both the wives of deceased had filed death certificates, but the date of death mentioning on the certificate is different. The deceased Chhadi Lal was in occupation of Govt. Quarter No. D□343, Kidwai Nagar, New Delhi, but anybody could not produce the residential proof that they are living in the said Govt. Quarter.

5 Objections filed by the objector Smt. Kamla Devi wherein it is averred that she is the legally wedded wife of the deceased Sh. Chhedi Lal. She got married with Late Sh. Chhedi Lal in the year 1968 at Village Achpal Garhi, PO Pilakhwa, Distt. Ghaziabad (UP) and one child namely Ram Kumar was born on 21.09.1974. The deceased was working with CPWD as a Beldar and she was nominee in his service record.

6 Petitioner filed her replication/rejoinder denying all the averments made by objector Smt. Kamla Devi. She stated that deceased Chhedi Lal got married in the year 1964 with some one at village Ghopla, Post Rogni, Distt. Meerut, UP and thereafter the wife of the deceased had expired after one year of her marriage. However, the deceased got married with one Kamla Devi at Paharganj, New Delhi. The said Smt. Kamla Devi had already married with some one at that time. Thereafter, Smt. Kamla Devi got separated from the deceased and solemnized third marriage with one Sh. Bhagwat at Village Nani, Post Office Garh Mukteshwar, Distt. Ghaziabad (UP) and out of the said wedlock two daughters were born. After lapse of 16 years, she again joined the company of the deceased. However, the deceased got married with the petitioner and out of the said wedlock four children were born. Objector Smt. Kamla Devi had filed a false complaint with the Delhi Legal Aid & Advice Board, Patiala House Court, New Delhi on 18.11.1995 vide case No. 1711/95/B. In the said complaint, she alleged that she got married with the deceased in the year 1967. The said complaint was closed as compromised.

7 In order to substantiate her case, the petitioner Smt. Munni Devi deposed as PW□. She deposed that deceased Sh. Chhedi Lal expired on 06.01.2005 at Delhi.

T h e d e c e a s e d h a s l e f t b e h i n d t h r e e sons namely Sh. Satish Kumar, Sh. Surender Singh and Sh. Shyam Sunder and one daughter namely Ms. Sumen Devi. The deceased has also left behind his mother namely Smt. Sumrati, the details of which are mentioned in Annexure A, Ex. PW□/A. She is the legally wedded wife of the deceased. She is entitled to get the succession certificate qua the service dues of the deceased, as mentioned in Annexure B Ex. PW□/B. Ex. PW□ 1 / C , Ex. P W □ 1 / D and Ex. P W □ 1 / E are the copies of School Leaving Certificate of Sh. Shyam Sunder, Sh. Surender Kumar and Ms. Suman Lata issued by Govt. Boys Sr. Sec. School No. 2, Mansarovar Park, Shahdara, Delhi. Ex. PW□/F and Ex. PW□/G are the copies of notice dated 22.12.1995 and dated 09.01.1995 issued by Delhi Legal Aid and Advise Board, Patiala House Court, Delhi. Ex. PW□ 1/H is the copy of death certificate issued by Guru Teg Bahadur Hospital of the deceased. Ex. PW□ 1/I and Ex. PW□/J are the copies of letter dated 06.01.2005 issued by CPWD to her regarding residential certificate in respect of the Government accommodation and payment of interim relief respectively. Ex. PW□/K is the copy of vacation report pertaining to the Government accommodation dated 04.10.2005 issued by C P W D . Ex. P W □ 1 / L is the copy of death certificate issued by Municipal Corporation of Delhi. Ex. PW□/M is the copy of cash memo for purchase of wood for cremation. Ex. PW□ 1/N is the copy of identity card of the deceased. Ex. PW□/O is the copy of ration card of the deceased. Ex. PW□/P, Ex. PW□/Q and Ex. PW□ 1/R are the copies of election identity cards of Sh. Shyam Sunder, Smt. Munni Devi and Sh. Surender Kumar. Ex. PW□/S is the copy of driving licence of Sh. Surender Kumar. Ex. PW□/T is the copy of speed post envelope and Ex. PW□/U is the copy of ration card of Satish Kumar.

8 During her cross examination, PW□1 stated that she could not tell the name of her earlier husband. She does not know how many children born from her earlier marriage. She could not tell the name of father of Sh. Satish Kumar. She could not tell when her earlier husband has left her. She does not remember as to whether she had obtained divorce or not from her earlier husband. Her marriage with deceased Chhedi Lal was solemnized about 45 years ago at Temple, Modi Nagar (UP) according to Hindu rites and ceremonies i.e. 7 Pheras. She has no proof of her marriage with Chhedi Lal. She does not know as to whether Chhedi Lal earlier married with Kamla Devi. She came to know that deceased Chhedi Lal was earlier married with objector Kamla Devi when she came to Patiala House Court. She does not know as to whether any divorce took place between Kamla Devi and Chhedi Lal.

T h e n a m e o f h e r f i r s t c h i l d i s S a t i s h a n d l a s t

child is Shyam Sunder. She does not know Kamla Devi.

9 PW □2 Sh. Chintamani, UDC from CPWD, H Division, Pandit Pant Marg filed the copy of Index Card of Chhedi Lal is Mark A. However, further statement of PW □2 could not be concluded.

10 PW □3 Sh. Satish Kumar, UDC from H Division, CPWD filed the CGHS Card of the deceased is Ex. PW □3/1.

11 During his cross examination, PW □3 deposed that one of the original of CGHS Card is available with the employees and other original of CGHS Card is available with the department.

12 PW □4 Sh. Prabhu Dayal, LDC from CPWD Division □V filed the nomination form in respect of Group Insurance Scheme, 1980, the copies of the relevant papers are Ex. PW □4/1. Ex. PW □4/2 is the copy of CGHS Card alongwith form option, Ex. PW □4/3 is the statement of fixation of pay under Central Civil Services (Revised pay) Rules, 1973 and Ex. PW □4/4 is the first page of service record. He was not cross examined despite opportunity. He was not cross examined despite opportunity.

13 In order to substantiate her case, objector Smt. Kamla Devi herself deposed as DW □1. She deposed that she is the legally wedded wife of the deceased Sh. Chhedi Lal. After her marriage, she and the deceased Chhedi Lal started residing as husband and wife at 1/3684, Ram Nagar, Shahdara, Delhi and one son namely Ram Kumar was born. She is the nominee in the service record of the deceased. Her name has been mentioned in the CGHS card as his wife and Ram Kumar as his son were mentioned in the CGHS Card, Mark A. Mark B and Mark C are the letters addressed to the objector by the employer of the deceased for completing the formalities. Mark D is the receipt of Shamshan Ghat and Mark E is the death certificate of the deceased. The deceased Chhedi Lal has a son namely Ram Kumar from her wedlock with the deceased. The School I Card, Election I card, Marksheet of 10th class & School Leaving Certificate, ration card and admission card of Ram Kumar and copy of Pariwar Register and letter of Pradhan are Ex. PW □1/F, Ex. DW □1/G, Ex. DW □1/H, Ex. DW □1/I, Ex. DW □1/K, Ex. DW □1/L and Ex. DW □1/M respectively. Petitioner is not the legally wedded wife of the deceased Sh. Chhedi Lal.

14 During her cross examination, DW □1 stated that Ex. DW □1/P □1 is the compromise deed dated 27.03.1996 containing terms and conditions of compromise arrived between Chhedi Lal, Ram Kumar and myself bears her thumb impression at point A. She had severed her relations with Chhedi Lal about 20 years prior to his death.

15 DW□2 Sh. Ram Kumar deposed on the same lines as deposed by DW□1 Smt. Kamla Devi.

16 During his cross examination, DW□2 stated that as per settlement, his grand father had given a portion in his property bearing no. 1/3684, B block, Gali No. 2, Ram Nagar, New Delhi. The said settlement was arrived in the PS Mansarovar Park between him and his grand father in the year 1993□94. In mark A, the name of Munni Devi has been mentioned at serial no. 2. However, there was a cutting at the serial no. 2.

Letter dated 15.06.2011, Ex. DW□1 / M does not bear the parentage and addresses of the persons who had signed the same. He does not know as to whether the petitioner had got married to Sh. Chhedi Lal. His name and the name of his mother were reflected in the service record of Sh. Chhedi Lal way back since 1973. Later on, the petitioner came into picture in the year, 1980 and changes were made in the record of Sh. Chhedi Lal by deleting entries pertaining to his mother.

His mother had submitted an application dated 18.11.1995 to Member Secretary, DLSA and pursuant thereto a settlement took place on 23.03.1996 and the matter was closed on 30.07.1996, as per Ex. DW□1/P□1. He know Sh. Ved Prakash and Sh. Dharampal, who had signed on certificate, Mark DW□2/1. He has not compromised the matter.

17 DW□3 Ms. Santosh Kumari deposed that she is the real sister of the deceased Chhedi Lal. Petitioner is not the legally wedded wife of the deceased. After marriage, objector and deceased Sh. Chhedi Lal residing as husband and wife at 1/3684, Ram Nagar, Shahdara, Delhi and one child namely Sh. Ram Kumar was born from the said wedlock.

18 During cross examination, DW□3 stated that she does not know Smt. Munni Devi. She does not know as to whether Munni Devi got married with deceased Sh. Chhedi Lal prior to 35□38 years. She has not visited terms with the deceased for the last 30□35 years. Deceased Chhedi Lal got married with Kamla Devi in the year 1970 in the village of Kamla. He was not cross examined by Union of India.

19 DW□4 Sh. Arun Upadhyaya, UDC, H□Division, CPWD filed the certified copy of health card bearing no. 162252 issued on 04.09.1981, Ex. DW□4/1.

20 During cross examination, DW□4 stated that there is no endorsement on the cutting on Ex. DW□4 / 1 by the concerned. There is no endorsement on the cutting at serial no. 2 and 3. As per record, there is no application has been moved for correction in Ex. DW□4/1.

21 I have heard arguments advanced by ld. counsel for the parties and has perused the record carefully as well as written arguments filed on behalf of the objector.

22 It is contended by ld. counsel for petitioner that petitioner got married with the deceased about 45 years back at Temple, Modi Nagar (UP). She is the legally wedded wife of the deceased. Out of her wedlock with the deceased, three sons and a daughter namely Sh. Satish Kumar, Sh. Surender Singh, Sh. Shyam Sunder and Ms. Sumen Devi respectively were born. In support of her contention, she proved documents Ex. PW□ 1/C to Ex. PW□/U i.e. school documents of her children, correspondence with the employer of the deceased, office documents of the deceased, identity proofs, Objector Kamla Devi is not the legally wedded wife of the deceased.

23 Per contra, it is contended on behalf of objector that the marriage was solemnized between the objector and the deceased Chhedi Lal in the year 1968 at Village Achpal Garhi, PO Pilakhua, Distt. Ghaziabad (UP) and out of the said wedlock one child namely Ram Kumar was born on 21.09.1974. During cross examination, PW□ Ram Kumar was born on 21.09.1974. During cross examination, PW□ 1 deposed that she does not remember the year and place of her first marriage. She also can not tell the name of her earlier husband. She also does not know as to how many children born from her earlier marriage. She does not remember as to whether she had obtained divorce or not from her earlier husband. She came to know that deceased Chhedi Lal was earlier married with objector Kamla Devi when she came to Patiala House Court. The objector Smt. Kamla Devi and her son namely Sh. Ram Kumar alone are entitled to grant of Succession Certificate. Petitioner is not entitled to succeed the debts and securities of the deceased.

24 It is no longer res integra that succession petitions are to be decided summarily. Sec. 373 of the Indian Succession Act provides that a succession petition is to be decided in a summary manner and even if court cannot decide the right to the certificate without determining questions of law or fact which may seem to be too complicated and difficult for determination in a summary proceedings, the Court may nevertheless grant a certificate to a person if he appears to be the person having prima facie the best title thereto. Thus U/s. 373 of Indian Succession Act, only prima facie case is to be seen and other questions of law and fact which may be complicated are to be decided by a regular civil court.

In the case of Madhvi Amma Bhawani Amma and others, Appellants Vs. Kunjikutty Pillai Meenakshi Pillai and others, Respondents AIR 2000 Supreme Court 2301=2000 AIR SCW 2432 it was held that "subsec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary proceedings and secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicants prima facie title. In other words the grant of certificate under it is only a determination of

prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be decision on an issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable."

25 In her pleadings, the petitioner Smt. Munni Devi admitted that Smt. Kamla Devi was already married to Sh. Chhedi Lal, who left the deceased Sh. Chhedi Lal and he waited for 16 years for Smt. Kamla Devi to return to him, but when she did not return, the petitioner Smt. Munni Devi got married with deceased Sh. Chhedi Lal. In her cross examination, PW 1 Smt. Munni Devi admitted that she came to know about the marriage between Sh. Chhedi Lal and Smt. Kamla Devi and she was not aware if any divorce took place between them. She does not know as to how many children were born from her earlier marriage. She also could not tell the name of father of Satish Kumar. She could not tell when her earlier husband has left her. She could not tell that earlier husband was live or died. She does not remember as to whether she had obtained divorce or not from her earlier husband. As such, the testimony of the petitioner is highly contradictory as she has not answered the simple question which is related to her life.

26 Although, there are documents proved on the record from the department of the deceased showing the name of the petitioner as the wife of the deceased.

However, in view of the pleadings of the petitioner wherein she admitted that Smt. Kamla Devi was married prior to her, in my opinion, these documents are of no relevance as the case of the petitioner only is that Smt. Kamla Devi was married to the deceased before her marriage with the deceased. This court is expected to decide the grant of Succession Certificate on the basis of prima facie title in favour of any person. This court can not be decided the validity of the marriage or the marital status between any person or of any person.

Considering the admission made by the petitioner on the record as aforesaid, I have no hesitation in holding that the objector has the best case between the petitioner and herself. There is no dispute between the relationship of respondents no. 2 and 3 namely Sh. Gangavasi and Smt. Sumrati as parents of the deceased. Sh. Gangavasi had expired during the pendency of the petition. As such, respondent no. 3 Smt. Sumrati being the mother of the deceased is entitled one share in the debts and securities of the deceased. So far as the children of the deceased Sh. Chhedi Lal are concerned, petitioner has successfully established by the documents of school certificate that Sh. Satish Kumar, Sh. Surender Singh, Ms. Sumen Devi and Sh. Shyam Sunder are the children born from her wedlock

with the deceased. Respondent Smt. Kamla Devi has also proved that Sh. Ram Kumar is the son of the deceased. Therefore, the court holds that they will be entitled to 1/5 th share each in the debts and securities of the deceased in view of Section 16 of the Hindu Marriage Act.

27 In view of the above discussion, the court holds that there is prima facie no impediment for grant of Succession Certificate in favour of respondent No. 2 Smt. Sumrati and respondents namely Smt. Kamla Devi, Sh. Satish Kumar, Sh. Surender Singh, Ms. Sumen Devi Sh. Shyam Sunder and Sh. Ram Kumar to the extent of 1/7th share each in the debts and securities of the deceased. Accordingly, a Succession Certificate be issued in favour of respondent No. 2 Smt. Sumrati and respondents namely Smt. Kamla Devi, Sh. Satish Kumar, Sh. Surender Singh, Ms. Sumen Devi Sh. Shyam Sunder and Sh. Ram Kumar to the extent of 1/7th share each in the debts and securities of the deceased, as per which the outstanding service dues of the deceased were Rs.2,39,565/- Succession certificate be drawn on deposit of total court fee of Rs.5,989/- and on furnishing an Indemnity Bond with one surety within 15 days.

A part from the service dues, respondent Smt. Kamla Devi is exclusively entitled for the family pension and arrears of pension, amounting to Rs.4,25,565/- , on deposit of court fees of Rs.10,639/- by the respondent only.

File be consigned to Record Room.

Announced in the open court
on 15.04.2017

(HEM RAJ)
Administrative Civil Judge-cum-
Additional Rent Controller (Central)
Delhi

SC/32825/16

15.04.2017
Present : None

Vide separate judgment of even date, it is held that there is prima facie no impediment for grant of Succession Certificate in favour of respondent No. 2 Smt. Sumrati and respondents namely Smt. Kamla Devi, Sh. Satish Kumar, Sh. Surender Singh, Ms. Sumen Devi Sh. Shyam Sunder and Sh. Ram Kumar to the extent of 1/7th share each in the debts and securities of the deceased. Accordingly, a Succession Certificate be issued in favour of respondent No. 2 Smt. Sumrati and respondents namely Smt. Kamla Devi, Sh. Satish Kumar,

Sh. Surender Singh, Ms. Sumen Devi Sh. Shyam Sunder and Sh. Ram Kumar to the extent of 1/7th share each in the debts and securities of the deceased, as per which the outstanding service dues of the deceased were Rs.2,39,565/□ Succession certificate be drawn on deposit of total court fee of Rs.5,989/□and on furnishing an Indemnity Bond with one surety within 15 days.

A part from the service dues, respondent Smt. Kamla Devi is exclusively entitled for the family pension and arrears of pension, amounting to Rs.4,25,565/□, on deposit of court fees of Rs.10,639/□by the respondent only.

File be consigned to Record Room.

(Hem Raj) ACJ/ARC (Central) Delhi/15.04.2017